



JAMAICA CONSTABULARY FORCE

Policy and Standard Operating Procedures for the Management of Sexual Harassment

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1.0 Introduction

The International Labour Organization (ILO) standards on decent work and elimination of discrimination in the workplace presents a platform of equal employment opportunities for both men and women characterised by equity, security, and human dignity¹. Sexual Harassment in any form runs counter to these standards, as it causes emotional distress in victims, fear and distrust of the perpetrators and a lack of confidence in accountability and staff protection systems in organizations. These conditions lead to unfavourable, hostile, and unhealthy work environments which negatively impact productivity and operational effectiveness, and ultimately organizations' ability to thrive.

The Jamaica Constabulary Force (JCF) recognizes and asserts that its human resource is its greatest asset and affirms that the creation of a work environment that respects and supports the rights and dignity of all persons is most essential. To this end, the organization deems it prudent to review and revise the existing Guidelines in Dealing with Allegations/Acts of Sexual Harassment in the Jamaica Constabulary Force².

Sexual assault and other related offences are covered in several legislations and must not be misconstrued with sexual harassment. However, persons who engage in inappropriate or unwelcomed behaviours may be cited for sexual harassment if the conduct does not reach the threshold of a crime.

Sexual Harassment is gender neutral; any person can either be a victim or perpetrator of sexual harassment.

2.0 Purpose

This document outlines the organization's policy on sexual harassment and sets out the procedure for the reporting, investigation, and resolution of complaints of sexual harassment in an effort to create and maintain an environment that is not conducive to sexual harassment.

3.0 Scope

This policy and standard operating procedures apply to all sworn and unsworn members of the JCF, its auxiliary and contractors. It covers the reporting and investigation of complaints of sexual harassment involving members and the measures available to resolve complaints which do not warrant criminal action. It also imposes responsibilities on key personnel in the reporting, investigation, and resolution process, as well as on creating an environment that discourages sexual harassment.

¹ <https://www.ilo.org/caribbean/areas-of-work/ils/rights-at-work/lang--en/index.htm>, Fundamental Rights at work

² Promulgated in Force Order 3579 dated January 7, 2016.

4.0 Definitions

4.1 Alleged Perpetrator

any member of the JCF, its auxiliary or contractor against whom an allegation of sexual harassment is made.

4.2 Investigating Officer

any member, of equal or higher rank relative to the alleged perpetrator, possessing the requisite expertise and free from conflict of interest, who is assigned to investigate a case of sexual harassment.

4.3 Complainant

Any member of the JCF or the public (to include vulnerable groups) reporting a case of sexual harassment committed upon him/her by a member of the JCF, its auxiliary or contractor.

4.4 Egregious Breach

A complaint of sexual harassment that warrants disciplinary action with view to dismissal

4.5 Hostile Working Environment

a work environment within which a member is subjected to unwelcome advances or sexual innuendos. This environment will facilitate pervasive and sufficiently severe sexual harassment and misconduct which may unfavourably alter the conditions of the offended member's employment.

4.6 Member

any gazetted officer, rank and file personnel, district constable or civilian whether employed or contracted to the JCF.

4.7 Quid Pro Quo

occurs when decisions regarding employment, duties, pay, benefits, title, position or other opportunities for advancement or training are promised, given, or threatened based on the condition that an individual submits to sexual-oriented advances/conduct, whether implicit or explicit, and where the rejection of such is used as a basis for such decisions affecting an individual.

4.8 Responsible Officer

an Administrative Officer, Commanding Officer, Area Commander, Inspector General of IPROB, or any other senior officer who, in respect to a complaint of sexual harassment has responsibility for the appointment of a Investigating Officer (IO), the management of the investigative and resolution processes, and all other functions as prescribed by this policy. A Responsible Officer shall not be any member who has an interest in, or will preside in any proceeding for which he has directed or appointed the IO.

4.9 Sexual Harassment

any unwelcomed sexual advance towards a person by another person, which is reasonably regarded as inappropriate, offensive or humiliating by the person towards whom the sexual advance is made; or which has the effect of interfering unreasonably with the work performance of the person to whom the sexual advance is made, or creating an intimidating, offensive or hostile working environment. Sexual harassment is classified in four categories: non-verbal, physical, verbal and written/visual/graphic:

4.10 Non-verbal Harassment

Unwelcomed explicit or implicit sexual actions to include lewd or suggestive gesturing, blowing kisses, winking, and leering or licking one's lips in a suggestive manner

4.11 Physical Sexual Harassment

unwelcomed bodily contact such as touching, patting, pinching, kissing

4.12 Verbal Sexual Harassment

unwelcome utterances of a sexual nature that affect a member's performance or create a uncomfortable, intimidating or hostile working environment. Examples of verbal sexual harassment include telling sexual jokes, using sexually explicit profanity, requesting sexual favours, dates and/or meetings that are unrelated to work and using sexually explicit expressions to describe certain attributes of one's physical appearance

4.13 Written/Visual/Graphic Sexual Harassment

unwelcome written, printed or electronic materials of a sexually suggestive nature shared. Examples include displaying and/or sending unwelcomed sexually oriented images, notes, letters or electronic messages (SMS, Whatsapp and other forms of social media)

4.14 Vulnerable Group

includes persons who, based on the power relationship or position within which they operate, may be placed in situations where they become susceptible to unwelcomed sexual advances by members of the Force. Examples include Force applicants, recruits, cadets, persons in custody and any member of the public to which the police must provide service.

4.15 Workplace

any structure, installation or building on land, any vehicle, vessel, aircraft or other mobile structure, any waters or place that is provided for a member to perform his functions.

5.0 Responsibilities

The following summarizes the key areas of responsibilities:

- 5.1 The Commanding Officer shall establish and communicate to all staff, clearly defined systems and mechanisms for the reporting, investigation, and resolution of complaints of sexual harassment, and promote a gender sensitive workplace by removing underlying factors that contribute to hostile working environment.
- 5.2 The Responsible Officer shall ensure that all reports of sexual harassment are investigated, victims and protected, and alleged incidents are adjudicated in accordance with this policy and standard operating procedure.
- 5.3 The Inspector General shall ensure that formations are in compliant with this policy and standard operating procedures, and establish and maintain a database of all reports of sexual harassment.

6.0 Policy Statements

The JCF is committed to the protection of every member's right to dignity, decency, respect, and fairness in the workplace, and to provide a work environment that is free from sexual harassment. To this end, it is the policy of JCF that:

- 6.1 sexual harassment of all form is unacceptable and will not be tolerated;
- 6.2 all allegations of sexual harassment will be expeditiously investigated, and appropriate actions instituted;
- 6.3 persons making reports of sexual harassment will not be victimised;
- 6.4 persons accused of sexual harassment will be notified in writing and given a reasonable opportunity to respond;
- 6.5 members are sensitized and/or trained on how to prevent the perpetuation of sexual harassment and hostile work environment; and
- 6.6 disciplinary actions will be instituted against members proven to have wilfully made a false report of sexual harassment.

7.0 Standard Operating Procedures

The management and coordination of all reports of sexual harassment will be treated according to the following guidelines and procedures

7.1 Reporting Sexual Harassment

- 7.1.1 Where a member is exposed or believes that he/she has been exposed to any act of sexual harassment, the member should clearly indicate to the accused person that the advance/action is unwelcome.
- 7.1.2 In the event where a clear indication cannot be made due to reasons of fear, intimidation or otherwise, or, where having clearly indicated that the advance/action is unwelcome the perpetrator continues, the member may make a formal report in writing as soon as is reasonably practicable to his or her Administrative Officer. The Administrative Officer to whom a report of sexual harassment is made shall be the Responsible Officer.
- 7.1.3 Where the subject of the complaint is the Administrative Officer, or, where it is not desirable to submit the report of sexual harassment to the complainant's Administrative Officer, the report should be submitted to the respective Area Commander. The Area Commander to whom a report of sexual harassment is made shall be the Responsible Officer.
- 7.1.4 Where the complaint is against the Area Commander, or, where it is not desirable to submit the report to the Area Commander, the affected member should submit the report to the Inspector General. Where the Inspector General receives a report of sexual harassment, he or she becomes the Responsible Officer.
- 7.1.5 Where the complaint is against the Area Commander, the Inspector General or other senior officer, the report should be submitted to the Commissioner of Police. The Commissioner of Police shall be the Responsible Officer.
- 7.1.6 Where the alleged perpetrator/accused is an unsworn member or contractor, the report shall be submitted to the Senior Director, JCF Human Resource Management Division to be dealt with in accordance with Staff Orders, Public Service Regulations and the JCF Code of Conduct for Civilian Staff.
- 7.1.7 Where the complainant is a member of the public or falls within the vulnerable group, any sworn member is authorized to appreciate the report.
- 7.1.8 Upon receipt of a report from a member of the public or a person who falls within the vulnerable group, the person appreciating the report shall immediately bring the matter to his or her Administrative Officer within 24 hours.
- 7.1.9 All members to whom complaints are made are obliged to ensure that matters are handled expeditiously with strict confidentiality, sensitivity, and tact.
- 7.1.10 Responsible Officers are obligated to take all reasonable and necessary steps to protect complainants against reprisal or victimization because of complaints.

7.2 *Conduct of Investigation*

- 7.2.1 The purpose of the investigation is to determine the facts of the case and assess the validity of the allegations. It will also serve to advise the management of any

concerns within the workplace that may be creating a hostile working environment. The following steps outline the investigative process:

7.2.2 On receipt of the report, the Responsible Officer, shall:

- i. notify the alleged perpetrator of the report in writing.
- ii. appoint a Investigating Officer; and
- iii. notify the complainant and alleged perpetrator in writing of the investigative process and any further action(s) that may be expected of them.

7.2.3 Upon appointment, the Investigating Officer, shall:

- i. commence investigation forthwith;
- ii. on completion, make a thorough, impartial, and objective recommendation based on the findings; and
- iii. submit a completed case file containing all information gathered, findings and recommendations to the Responsible Officer within 14 consecutive days.

7.2.4 If the investigation is not completed within 14 days, the Investigating Officer shall submit the working casefile and a report detailing the circumstances for the delay to the Responsible Officer.

7.2.5 If the Responsible Officer is satisfied that more time is needed to complete the investigation, he shall grant an additional seven days. Thereafter, the Responsible Officer may grant additional time for completion of the investigation if the reason(s) for the delay is submitted in writing, and if he/she is satisfied that the delay is reasonable, justified and will not defeat the pursuit of justice. In any case, the total number of additional days granted after the initial 14 days shall not exceed 30 days.

7.2.6 If the Responsible Officer is not satisfied that more time is needed to complete the investigation, the Investigating Officer shall submit the working case file and a report detailing the circumstances for the incompleteness to the Responsible Officer.

7.2.7 If during the investigation it is borne out that the allegation reaches the threshold of criminal conduct, the Investigating Officer shall without delay, submit the casefile to the Responsible Officer for onward transmission to the *Centre for the Investigation of Sexual Offences and Child Abuse* (CISOCA) Headquarters for further investigation.

7.2.8 The CISOCA shall refer all criminal cases to the Director of Public Prosecution (DPP) for ruling.

7.3 Resolution

7.3.1 The Responsible Officer shall review the casefile, the recommendation(s) of the Investigating Officer and the totality of circumstances and may:

- a) where he/she determines that the nature of the matter does not warrant further intervention and does not meet the threshold for disciplinary or criminal action, close the file on the written agreement of both parties.
- b) where he/she determines that the nature of the matter warrants intervention but does not meet the threshold for disciplinary or criminal action, require either or both parties to attend counselling. The Responsible Officer may thereafter close the file upon either or both parties' successful completion of counselling.
- c) where he/she determines that the nature of the matter warrants intervention and is of sufficient gravity but does not meet the threshold for disciplinary or criminal action, serve a warning on the perpetrator and close the file; or
- d) where he/she determines that the nature of the matter meets the threshold for disciplinary or criminal action, engage the established disciplinary/administrative processes as hereunder:

Status of Accused	Outcome of Investigation	Action for Resolution
Member or Contractor	Reaches criminal threshold	Refer to CISOCA for DPP
Below rank of Inspector	Administrative breach established	Refer to the ACP Administration with a view for the Commissioner of Police to determine whether to appoint a Court of Enquiry*
Inspector or above	Administrative breach established	Refer to the Police Service Commission with a view to the Commission determining whether to recommend the appointment of a Court of Enquiry
District Constable	Administrative breach established	Refer to administration for Board of Enquiry
Unsworn Member/ Contractors	Departmental breach established	Refer to Senior Director, Human Resource Management

* Court of Enquiry for more egregious and/or repeated breaches

- e) The Responsible Officer shall inform both parties in writing of the result of the investigation and the action(s) recommended.

7.4 False, Malicious, Mischievous and/or Frivolous Complaints

7.4.1 Sexual harassment allegations are serious and can cause reputational injury, embarrassment, apprehension or discomfort to the member, alleged offender, and the organization.

7.4.2 Therefore, false, malicious, mischievous and/or frivolous complaints will not be tolerated and shall result in disciplinary action. A matter may be deemed false,

malicious, mischievous and/or frivolous if evidence that shows that the allegation did not or could not have occurred and/or was motivated by malice.

- 7.4.3 Where the Investigating Officer concludes that a report of sexual harassment has been false, malicious, mischievous and/or frivolous, a written report outlining such details shall be forwarded to the Responsible Officer for the appropriate disciplinary actions.

8.0 Legislative Authority and Policies

This policy and standard operating procedures is in keeping with the following legislations, guiding principles and policies:

- [International Labour Organization \(ILO\) Violence and Harassment Convention](#)
- [United Nations Code of Conduct for Law Enforcement Officials](#)
- [Universal Declaration of Human Rights](#)
- [Staff Orders for the Public Service, 2004](#)
- [Constabulary Force Act](#)
- [Book of Rules for the Guidance and General Direction of the Jamaica Constabulary Force, 1988](#)
- [Jamaica Constabulary Force Ethics and Integrity Policy](#)
- Jamaica Constabulary Force Code of Conduct for Civilian Staff

9.0 Roles and Functions

9.1 Commanding Officers

Commanding Officers shall:

- i. establish and communicate to all staff, clearly defined systems and mechanisms for the reporting, investigation, and resolution of sexual harassment complaints;
- ii. ensure that all allegations of sexual harassment are investigated within the stipulated period;
- iii. ensure that their Division has adequately trained Investigating Officer to conduct investigations of the sexual harassment complaint;
- iv. where appropriate, reassign parties where it is practicable to ensure that the complainant and the alleged perpetrator do not work in the same environment during the investigation of sexual harassment;
- v. ensure that sexual harassment awareness and sensitization is incorporated in divisional training, briefings and station lectures;
- vi. promote a gender sensitive workplace and remove underlying factors that contribute to hostile working environment; and
- vii. submit monthly return of sexual harassment complaints to the Inspector General, IPROB.

9.2 Inspectorate and Professional Standards Oversight Bureau

The Inspector General shall:

- i. Develop and institute the relevant returns to ensure divisions/formations are compliant with sensitization seminars.
- ii. Coordinate reviews and monitoring activities, including periodic review of formations to ensure compliance of policy and standard operating procedures.
- iii. Establish and maintain a database of all complaints of sexual harassment.

9.3 Assistant Commissioner, Training Branch

The Assistant Commissioner of Police in charge of Training shall:

- i. Develop a sexual harassment awareness module as part of the curriculum to be delivered at all levels of training.
- ii. Develop and deliver sexual harassment sensitization sessions for all instructors, trainees, and staff.
- iii. Promote a gender sensitive workplace and remove underlying factors that contribute to hostile working environment.
- iv. Institute programmes to protect vulnerable groups attached/associated to the Training Branch and prevent any actual or perceived *quid pro quo* opportunities being offered to them.

9.4 Assistant Commissioner, Planning, Research & Development Branch

The Assistant Commissioner of Police in charge of PRDB shall review this policy and standard operating procedures every two years or as may be needed.